

HOUSE BILL 1441

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 39 and Title 40, relative to criminal
impersonation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-16-301, is amended by deleting subdivision (d)(2), substituting the following, and redesignating subdivision (d)(3) appropriately:

(2)

(A) Except as otherwise provided in this subdivision (d)(2), criminal impersonation under subsection (b) is a Class A misdemeanor.

(B) Criminal impersonation of a law enforcement officer under subsection (b) that occurs while the defendant is operating a motor vehicle pursuant to § 55-9-201(d), § 55-9-402(g), or § 55-9-414(f) is a Class A misdemeanor, and, notwithstanding § 40-35-111, the maximum fine for the offense is five thousand dollars (\$5,000).

(C) Criminal impersonation of a law enforcement officer under subsection (b) that occurs while the defendant is committing or attempting to commit a crime of violence is a Class E felony. As used in this subdivision (d)(2)(C), "crime of violence" means the same as defined in § 39-17-1301.

(3) Criminal impersonation under subsection (c) is a Class A misdemeanor.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.